

Partout Commercial License - v0.1

(Effective: 2026-03-22)

This License Agreement (“Agreement”) is a legal agreement between you (“Licensee”) and Davide De Rosa (“Licensor”), governing your use of the Partout library under commercial terms.

By purchasing, downloading, or using Partout under a commercial License Tier, you agree to be bound by the terms of this Agreement. If you do not agree to these terms, you must not use Partout and should discontinue any active integration or distribution. All communications relating to this Agreement shall be made by email to the following addresses:

_____. Each party undertakes to promptly notify the other of any changes to its email contact details.

This Agreement coexists with the open-source version of Partout, which remains available under the GNU General Public License (GPL). This commercial license provides an alternative set of terms for Licensees who wish to use Partout without the obligations of the GPL.

1. Definitions

- **Partout:** The proprietary Partout library developed and distributed by Licensor, including its compiled binaries and any accompanying SDKs or documentation specifically designated as part of the library. This Agreement does not apply to any other software, tools, or materials released under the same project name or repository that are covered by separate open-source licenses.
- **Application:** An end-user (B2C) software application developed for direct use by individual users that integrates or uses Partout as part of its functionality. Applications do not include solutions intended for resale, licensing or other provision to third parties, hosting, or integration into systems or platforms belonging to parties other than the original developer.
- **Distribute:** To make an Application available to end users through any means, including but not limited to app stores, downloads, APIs, or public servers.
- **Active Users:** Monthly active users (MAUs), defined as distinct devices or accounts that use Partout-enabled features in a calendar month.
- **Licensing Platform:** The online payment and subscription system designated by

Licensor for commercial licensing of Partout, as described on Licensor's official website.

- **Public Provider:** An entity that makes available to the public, directly or through online platforms, applications or services that integrate or use Partout and are accessible by end-users (B2C).
- **Competing Product:** Any software product or service that provides substantially similar functionality to, or is designed to compete with, Passepartout or other software distributed by Licensor, whether directly or indirectly.

2. Grant of License

Subject to Licensee's payment of applicable fees and ongoing compliance with this Agreement, Licensor hereby grants Licensee a non-exclusive, non-transferable, worldwide license to:

- Use, modify, and integrate Partout into one or more Applications in accordance with the License Tier purchased through the Licensing Platform;
- Distribute such Applications under the terms and conditions set forth in this Agreement.

This license does not transfer ownership of Partout. All rights not expressly granted are reserved by Licensor. Licensor retains all intellectual property rights in Partout, including all copyrights, trademarks, and trade secrets, except for the limited rights expressly granted under this Agreement.

2.1 License Tiers

The scope of permitted use depends on the License Tier purchased:

- **Internal Products** - Allows the use of Partout within an organization for Applications intended exclusively for that organization's internal users, employees, or systems. Distribution to the public is not permitted under this License Tier.
- **Public Applications** - Allows the use of Partout in Applications made available to the public, provided that such Applications are not operated or made available by a Public Provider, as defined in this Agreement, and are not primarily intended for the organization's internal use, even if they are publicly accessible.

Future or higher License Tiers, including those applicable to Public Providers, may define broader rights or obligations and will be governed by specific separate agreements.

3. License Fee

The License Fee is determined by the Licensing Platform selected and configured by Licensor, as described on the purchase page at the time of payment. Each invoice issued

through the Licensing Platform constitutes proof of payment and includes a reference to the version of this Agreement in effect at the time of purchase.

3.1 License Validity and Renewal

This License remains valid for the duration of the active subscription as managed through the Licensing Platform. Before renewal, Licensor shall inform Licensee by email of any changes to the License terms or the fees applicable to the renewal period. Renewal shall take effect only after Licensee confirms acceptance of the updated terms and pricing through the Licensing Platform. If the subscription is not renewed or is canceled, Licensee's rights under this License shall terminate automatically. Upon termination, Licensee must cease all use, integration, and distribution of Partout, including in any Applications already distributed or made available to users. Any continued use or distribution of such Applications after termination shall constitute unauthorized use of Partout.

3.2 License Transferability

This License is personal, non-exclusive, and non-transferable. Licensee may not assign, transfer, lease, sublicense, distribute, delegate, or otherwise dispose of, in whole or in part, this License or any of the rights or obligations arising from it to any third party, including in the event of a merger, demerger, transfer of a business unit, corporate transformation, or any other extraordinary transaction resulting in a change of control or ownership of Licensee. Any attempted transfer or disposition in violation of this clause shall be null and void and shall constitute a material breach, entitling Licensor to terminate the License immediately pursuant to Section 7, without prior notice.

3.3 Payments and Taxes

All payments due under this License must be made exclusively through the Licensing Platform designated by Licensor. Prices are exclusive of any applicable taxes, duties, or governmental charges, which shall remain the sole responsibility of Licensee. License Fees are non-refundable, except where expressly required by applicable law. Licensee is responsible for keeping billing information up to date and for ensuring the timely payment of all amounts due. Failure to pay by the applicable due date may result in the immediate suspension of the License. If such non-payment is not cured within fifteen (15) days after Licensor sends notice of suspension, Licensor may terminate the License pursuant to Section 7 without any further notice or formality.

4. Restrictions

Licensee shall not, directly or indirectly:

1. Develop or distribute a Competing Product — Use Partout to create, distribute, or operate any product, service, or platform that qualifies as a Competing Product under this Agreement.
2. Redistribute Partout itself or expose its functionality as a product, library, standalone service, network API, SDK, or hosted service, whether in source or binary form, for use by third parties, except as embedded within an authorized Application and unless expressly authorized in writing by Licensor.
3. Resell, sublicense, or transfer Partout or this License to any third party, except as permitted under Section 3.2.
4. Remove, obscure, or alter any copyright notice, attribution, or other identifier included in Partout or its related documentation.
5. Exceed the scope permitted by the purchased License Tier, including any user or usage limits, or engage in uses reserved for higher tiers, such as use as a Public Provider, without obtaining the corresponding license.

4.1. Prohibited Uses

Licensee shall not use Partout in any manner that:

- Violates any applicable law or regulation;
- Contributes to or facilitates unlawful, fraudulent, or deceptive activity;
- Intentionally interferes with, disrupts, or damages networks, systems, or data;
- Could reasonably be expected to harm the reputation, integrity, or security of Licensor or its products; or
- Contravenes any applicable export control, sanctions, or data protection laws.

In all cases of unlawful or prohibited use, responsibility shall rest exclusively with Licensee, and Licensor shall bear no liability whatsoever. The above list of prohibited uses is non-exhaustive; any similar or related misuse shall also be deemed a violation of this Agreement. Any use of Partout outside the rights expressly granted in this Agreement constitutes a material breach and may result in the immediate termination of this License.

4.2 Compliance and Verification

Licensor relies on Licensee's good-faith compliance with the terms of this Agreement, including adherence to the permitted License Tier and any applicable usage limits. Licensee is responsible for monitoring its own use of Partout and ensuring it remains within the authorized scope.

Licensor does not require routine reporting or audits. However, if credible evidence suggests a material violation of this Agreement, Licensor may request reasonable information from Licensee to confirm compliance. Licensee agrees to cooperate in good faith with such requests.

5. Warranties and Disclaimers

5.1 Limited Warranty

Licensor warrants that Partout, when obtained from <https://github.com/partout-io/partout>, will substantially conform to its published documentation at the time of delivery. Licensor does not warrant that Partout will be error-free, uninterrupted, or suitable for any specific purpose. Licensee assumes full responsibility for the selection, integration, and testing of Partout within its Applications.

5.2 Disclaimer of Other Warranties

Except as expressly stated above, Partout is provided “as is” and “as available”, without warranties of any kind, whether express, implied, or statutory. This includes, without limitation, implied warranties of merchantability, fitness for a particular purpose, non-infringement, and compatibility.

No advice or information, whether oral or written, obtained by Licensee from Licensor or its representatives shall create any warranty not expressly stated in this Agreement.

5.3 Third-Party Components

Partout may include or depend on third-party libraries, modules, or tools provided under their own licenses. Such components are governed exclusively by their respective license terms.

Licensor makes no warranties or representations regarding third-party components and shall bear no liability for any damages, defects, or claims arising from their use. Licensee is responsible for reviewing and complying with the applicable third-party licenses.

6. Limitation of Liability

To the maximum extent permitted by applicable law:

1. **Exclusion of Damages** — In no event shall Licensor be liable for any indirect, incidental, consequential, special, exemplary, or punitive damages, or for any loss of profits, revenue, data, or business opportunities, arising out of or in connection with this Agreement or the use of Partout.
2. **Aggregate Cap** — Licensor's total cumulative liability under this Agreement shall not exceed the total amount of License Fees paid by Licensee during the most recent billing period preceding the event giving rise to the claim.
3. **Indemnification** — Licensee agrees to indemnify, defend, and hold harmless Licensor and its contributors from and against any and all claims, damages, liabilities, costs, and

expenses, including reasonable legal fees, arising out of or related to Licensee's use, distribution, or modification of Partout, or any violation of this Agreement.

7. Term and Termination

This License remains in effect for as long as Licensee maintains an active subscription through the Licensing Platform, unless terminated earlier under this Section.

Licensor may terminate this License immediately by written notice to the email address specified in the preamble of this Agreement if Licensee commits a material breach and fails to cure it within thirty (30) days after notice.

Upon termination or lapse, all rights granted under this License cease immediately. Licensee must stop using, integrating, and distributing Partout, including in any Applications already deployed or under development. Termination does not relieve Licensee of any obligation to pay outstanding fees, and continued operation or distribution of Applications using Partout thereafter constitutes unlicensed use.

7.1 Survival

The following provisions shall survive termination or expiration of this Agreement: Sections 2 (Grant of License), 4 (Restrictions), 5 (Warranties and Disclaimers), 6 (Limitation of Liability), 8 (Governing Law and General Provisions), and any other provisions which by their nature should reasonably survive.

8. Governing Law and General Provisions

8.1 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of England and Wales, without regard to its conflict of law principles. The parties agree that any dispute arising under or in connection with this Agreement shall be subject to the exclusive jurisdiction of the courts located in London, United Kingdom.

8.2 Entire Agreement

This Agreement constitutes the entire understanding between Licensor and Licensee regarding the use of Partout under commercial terms and supersedes any prior or contemporaneous agreements or communications, whether written or oral, relating to the same subject matter.

8.3 Amendments

Licensor may update or modify this Agreement from time to time. Any updated version of this Agreement shall apply upon renewal or other acceptance through the Licensing Platform, as applicable.

8.4 Severability

If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force and effect, and the invalid provision shall be replaced by a valid one that most closely reflects the parties' original intent.

8.5 Waiver

Failure by either party to enforce any provision of this Agreement shall not constitute a waiver of that provision or any other.